



GOVERNMENT OF BALOCHISTAN
PUBLIC PROCUREMENT REGULATORY
AUTHORITY

Dated Quetta the 02nd June, 2020.

NOTIFICATION

No.B-PPRA/1-31/2020/ 637-49 /. In exercise of the powers conferred by Section 28 of the Balochistan Public Procurement Regulatory Authority Act, 2009, the Balochistan Public Procurement Regulatory Authority is pleased to make the following regulations, namely:

1. (1) These regulations may be called "the Balochistan Public Procurement Review Committee Regulations, 2020".
(2) They shall come into force at once.
2. In these regulations, unless the context otherwise requires,—
 - (a) "Act" means the Balochistan Public Procurement Regulatory Authority Act, 2009;
 - (b) "Appellant" means a person who has filed an appeal under these Rules and includes a representative of the appellant;
 - (c) "Appeal" means an application made under rule 56 (7) of the Balochistan Public Procurement Rules, 2014 for review of a decision made by the Complaint Redressal Committee;
 - (d) "Authority" means the Balochistan Public Procurement Regulatory Authority established under the Balochistan Public Procurement Regulatory Authority Act, 2009;
 - (e) "Chairperson" means Managing Director who shall be the Chairperson of Procurement Review Committee as provided in rule 56-A of the Balochistan Public Procurement Rules, 2014;
 - (f) "Chief Secretary" means the Chief Secretary of Balochistan;
 - (g) "Form" means Form appended with these Regulations;
 - (h) "Interlocutory application" refers to an application made by a party to the proceedings, between the beginning and end of the proceedings, for the Procurement Review Committee to decide a particular point or matter that is not the final issue or to prevent irreparable harm during consideration of the main application or reference;
 - (i) "Managing Director" means Managing Director of the Balochistan Public Procurement Regulatory Authority;
 - (j) "Member" means a member of the Procurement Review Committee appointed under rule 56-A (3) of the Rules;
 - (k) "Registrar" means the Registrar of the Procurement Review Committee;

- (l) "Representative" means an advocate, employee or any person authorised in writing by the appellant or respondent to represent the appellant or respondent at a proceeding of the Procurement Review Committee;
- (m) "Respondent" means a person against whom an appeal has been filed under these Regulations and includes a representative of the respondent; or such other person as the Procurement Review Committee may determine;
- (n) "Rules" means the Balochistan Public Procurement Rules, 2014;
- (o) "Schedule" means Schedule appended with Regulations.

3. **Business and sittings of Committee.** (1) The business and sittings of the committee shall be as under:-

- (a) The business of the Committee shall be transacted at the Authority's offices between 10.00 a.m. and 1.00 pm on Tuesday, Thursday and Friday, unless the chairperson directs otherwise.
- (b) The sittings of the Committee and the matters to be disposed of at the sittings shall be determined by the chairperson and shall be notified as the chairperson may direct.
- (c) Panel of external Members:
 - (i) The Chairperson shall nominate external members of the committee from among an approved panel of the members. The Chief Secretary may approve the panel on recommendation by the Chairperson or amend the panel by exclusion or inclusion.
 - (ii) The members shall be paid remuneration for their services as determined by the Authority from time to time with the approval of the Chief Secretary.

4. **Appointment of Registrar of Appeals.** The Authority or the Managing Director, as so authorized by the Authority, may designate an officer of the Authority, as Registrar of Appeals for carrying out the functions under these regulations.

5. **Communications to Review Committee.** All communications to the Review Committee relating to matters pending before it shall be made through the Registrar or such other officer as the Review Committee may authorize.

6. **Functions of Registrar.** (1) The Registrar shall assist the chairperson to manage the Committee and advise on its operations.

- (2) Without limiting the general effect of sub regulation (1), the Registrar shall;
 - (a) receive and register appeals, notices of decision and all documents or things relating to the appeal;
 - (b) process appeals;
 - (c) issue and serve notices and summons of the Committee;
 - (d) facilitate the listing and conduct of conferences and hearings;

- (e) keep all documents, books, things or records of the proceedings of the Committee;
- (f) provide information to parties and their representatives and the general public on the operation and procedures of the Committee;
- (g) issue interim orders;

(3) The Registrar shall;

- (a) maintain a register of the applications and references; and enter in the register, the particulars of every application and reference, by serial number in every year, according to the order in which the applications and references are entered.
- (b) The Register shall contain for each application, as may be applicable the serial number of the appeal; the date on which the appeal is lodged; the name and address of the appellant; the name and address of the person or entity who made a decision to which the appeal relates; the particulars of the appeal; a brief description of the decision of the Committee that gave rise to the appeal; the date of the hearing of appeal; the names of witnesses; interlocutory orders of the Committee and the date on which they are made; decision of the Committee and the date on which it is made.

7. Fee for filing Appeal. A non-refundable fee for filing appeal, at the rates and in the form to be notified by the Authority from time to time, shall be deposited in favour of Authority, on submission of the Appeal.

8. Memorandum of Appeal, documents accompanying Memorandum of appeal.

(1) An appeal pertaining to public procurement may be lodged with the Registrar, on behalf of the Review Committee on the grounds specified in sub-rule (1) of Rule 56-A and shall be accompanied by proof of payment of a non-refundable fee.

(2) A memorandum of appeal shall;

- (a) include a brief statement of the reasons under distinct heads for the appeal and issues on which a decision is sought and shall be accompanied by;
 - (i) the decision to be reviewed, where applicable;
 - (ii) request for information from the Complaint Redersal Committee or the Procurement Committee or Consultant Selection Committee, where necessary;
 - (iii) prayer, and interim relief if any and
- (b) as specified in Form 1 set out in the Schedule;
- (c) be submitted in seven (7) bound copies in book form, with a title on the cover including an index and each page consecutively numbered.

(3) The memorandum of appeal shall be accompanied by seven (7) sets of the following documents duly certified by the appellant:-

- (a) Copy of the complaint (duly received) made to the Complaint Redressal Committee.
- (b) Copy of the order of the Complaint Redressal Committee, if any, by which the appellant is aggrieved in the first instance and has made a complaint against.
- (c) An affidavit to assert the relevant facts or statements, where the appellant, for reasons beyond his control, is not in a position to furnish a certified photostat copy of the order of the Complaint Redressal Committee or where the appeal is based on a statement of a decision, action or omission of the Procuring Entity.
- (d) Copies of the documents on which the appellant wishes to rely.
- (e) Copy of the NIT duly published in the newspapers and bidding documents and uploaded on the Authority's website and website of the procuring agency (if any).
- (f) Bid Evaluation Report if issued to bidders or uploaded at the Authority's website.
- (g) Proof of having deposited the prescribed fee for filing of the appeal.

9. Procedure on receipt of Appeal. (1) On receipt of an appeal, the Registrar shall mention the date, affix stamp and sign all copies of the appeal.

(2) The Registrar shall retain five copies for the use of the Committee.

(3) The sixth and seventh copies shall be returned to the applicant to be served on the respondents.

(4) The Registrar on the day of receipt, refer the memorandum of appeal to the chairperson who shall endorse on the same the date on which it has been presented or is deemed to have been presented and shall forthwith issue summons to the respondents to file a reply to the application and may give other directions on appearance before the Committee.

(5) The summons shall be as specified in Form 2 set out in the schedule.

(6) Any document uploaded on the Authority's website under rule 49.

10. Preliminary Scrutiny. (1) The Registrar of Appeals shall, after acknowledgement of the appeal, conduct preliminary scrutiny of the appeal and determine whether appeal is;

- (a) in the prescribed Form and accompanied by the documents mentioned at regulation 8 above;
- (b) affixed with signature and thumb impression of the appellant;
- (c) based on grounds on which appeal can lie under Rule 56 (7);

- (d) within the limitation period, as prescribed in rule 56-A (1) or whether the appellant has given sufficient cause for not preferring the appeal within the limitation period;
- (e) pleading only the relevant and necessary persons as respondents;
- (f) within the appellate jurisdiction of the Authority; and in compliance with other relevant points affecting admissibility of the appeal.
- (g) He shall hear the appellant or his authorized representative in case it is contemplated to recommend the appeal for rejection, and finalize his recommendation in the case.
- (h) on the basis of the preliminary scrutiny, the Registrar of Appeals shall proceed as follows:
 - (i) fix the appeal for hearing; or
 - (ii) permit the appellant to resubmit the memorandum of appeal or produce necessary document and thereafter send the appeal for hearing; or
 - (iii) recommend to the Chairperson that the appeal, before its admission may be rejected on the grounds specified by him.
 - (iv) the Registrar of Appeals shall promptly submit the appeal along with result of the preliminary scrutiny to the Chairperson.
 - (v) in case, the appeal is recommended for rejection, the Chairperson shall examine the case and decide about the rejection or admission of the appeal along with recording the reasons thereof.
 - (vi) the decision of the Chairperson about the rejection or admission of the appeal shall be final, and conveyed to the appellant by the Registrar of Appeals.

11. Nomination of External Members for the appeal. On receipt of the appeal from the Registrar of Appeals, the Chairperson shall nominate external members in accordance with Rule 56-A(3), for hearing of the appeal.

12. Issue of summon and production order. (1) The issue of summon and production order shall be made in the following manner:

1. On finalization of the nomination order and its communication, the Chairperson shall order the issue of:
 - (a) Summons to the appellant and to the respondents; and production order of the record using Form-4 in exercise of the powers conferred upon the Authority under Section 15 (1) of the Act, considered necessary by the Review Committee for hearing and disposal of the appeal.
 - (b) The summons to the respondents shall be accompanied with a copy of the memorandum of appeal and its enclosures.
 - (c) A summon shall be served by;
 - (i) tendering or delivering its copy to the person summoned or his duly authorized representative, or

- (ii) sending through official channels of communication, if the person summoned is an employee of Government or Public Sector Organization.
- (iii) a summon may be sent through a registered post, courier or messenger, or digital means if proper address is available for the purpose; provided that an acknowledgement purporting to be signed by the respondent or an endorsement by the postal or courier service that the respondent refused to take the delivery may be deemed to be prima facie proof of service.

13. Submission of Reply. (1) The Committee shall give the respondents a notice specifying the documents to be lodged, where the Committee requires respondents to lodge specific document(s).

(2) A respondent shall lodge the material documents specified under Regulation 13 (3) using Form 3 set out in the Schedule.

(3) A respondent shall, within two working days of being served with the summon of an appeal, lodge with the Registrar eight (8) copies of each of the following certified copies using Form 4;

- (a) copy of the decision of Complaint Redressal Committee;
- (b) the statement in reply of the appeal giving reasons for the decision;
- (c) the relevant documents in the possession of the respondent or under the control of the respondent and shall include the bid document and all relevant documents referred to in the decision; and
- (d) any document requested for by the applicant.

(4) The notice specified under Regulation 13 (3) shall be as specified in Form 4 set out in the Schedule.

(5) Where the respondent fails to lodge the documents required under these regulations, the Committee shall exercise power under section 15 (1) of the Act to require the respondent to produce the document.

14. Interlocutory applications. Any interlocutory application, including an application to stay action of a procuring agency shall only be entertained after an application has been filed with the Committee in accordance with the Regulation.

15. Conferencing session. (1) The Parties within five working days after the response to the appeal has been received by the Committee for the purposes of holding a conferencing session shall appear before the Registrar to agree on the following matters;

- (a) facts;
 - (b) issues for determination by Committee;
 - (c) authorities or precedents in support of the application of reference; or
 - (d) any interlocutory application.
- (2) At the conferencing session, the Parties may consider alternate dispute resolution.
- (3) The parties shall at the conferencing session agree on a trial to be filed with the Committee on the next working day following the conferencing session.
- (4) The agreed trial shall include;
- (a) agreed facts;
 - (b) issues for review by the Committee;
 - (c) authorities or precedents relied upon by the Parties; and
 - (d) essential arguments in support of each party's case.

16. Withdrawal of appeal. (1) An appeal may at any time be withdrawn before or during consideration by the Committee, by notice in writing, addressed to the Registrar.

(2) The Committee shall approve the withdrawal of the application, with or without costs.

(3) When the application is withdrawn, the registrar shall immediately inform the respondent or any persons affected by the application.

17. Hearing of appeal. (1) The Review Committee shall conduct the hearing in the following manner:-

- (a) The hearing shall commence at the place, date and time specified in the summons to the parties and shall be open to all parties to the appeal.
- (b) The chairperson may, at hearing of the appeal, exclude any person from the hearing who deems unruly, interruptive or otherwise conducts himself in an unreasonable manner.

18. Attendance at hearing. (1) Where on the date set down for hearing;

- (a) the appellant appears and the respondent fails to appear, the hearing of the matter shall proceed in the absence of the respondent unless the Review Committee considers it fit to adjourn the hearing;

- (b) the respondent appears but the applicant fails to appear, the appeal may be dismissed or may be determined in the absence of the appellant; or
- (c) if both parties fail to appear, the appeal may be dismissed or may be determined in the absence of the parties;

(2) The Review Committee shall proceed with hearing of the appeal in the manner prescribed in Regulation 17, or adjournment may be granted on the request of the parties with convincing grounds, subject to such costs or other conditions as are considered appropriate by the Review Committee.

(3) The notice of hearing for the parties shall be as specified in Form 5 set out in the Schedule.

19. Arguments. The parties may, either personally or through authorized representatives, submit orally or in writing or in both, their arguments before the Review Committee. The appellant shall not, except by leave of the chairperson, urge or be heard in support of any ground not set forth in the memorandum of appeal.

20. Compilation and submission of report. After hearing the parties and examination of the relevant documents and evidence on record, the Review Committee shall compile a report stating the concise facts of the case, the points of determination, findings thereon along with reasons and recommendations, including specific relief, if any, to the appellant or rectification or annulment of the procurement process by the Procuring Agency within prescribed period.

21. Specific Powers of the Review Committee. Without any prejudice to their general powers, the Committee shall have powers to order provision of any specific relief to the appellant, rectification or annulment of the procurement process and refer the case to the relevant law enforcing authority to enable that authority for investigation and initiation of action against the officials involved/concerned.

22. Binding nature of decisions of the Review Committee. The decision of the committee on the appeal shall be binding on all the parties, and non-compliance thereof shall, besides any other liability, constitute misconduct against the concerned employees of the Procuring Agency.

23. Computation of time. In computing time for purposes of these Regulations, the following regulation shall apply;

- (a) in determining the time for the performance of any action or any proceeding under these regulations, Saturday, Sunday and any other day appointed as a public holiday shall not be reckoned in the computation of the two weeks specified in rule 56-A(1);
- (b) where the time for doing any act expires on a Saturday or Sunday or other day on which the offices are closed, and by reason thereof the act or proceeding shall, so far as regards the time of doing or taking the act or proceeding be held to be duly done or taken if done or taken on the day on which the offices shall next be open;

24. Applicability of Rules of Practice and Procedures. (1) In any matter relating to the proceeding of the Review Committee for which these Regulations do not provide, the rules of practice and procedure of the Code of Civil Procedure, 1908, shall apply.

(2) The Review Committee may direct the modification of the use of any rule of practice or procedure of the civil Court.

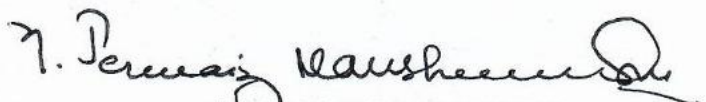
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FINANCE DEPARTMENT**

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6. The Chairman, Balochistan Public Service Commission, Quetta.
8. All Administrative Secretaries to Government of Balochistan.
7. The Accountant General Balochistan, Quetta.
9. The Secretary, Balochistan Provincial Assembly, Quetta.
10. All Commissioners in Balochistan.
11. The Secretary, Provincial Mohtasib (Ombudsman) Secretariat, Balochistan, Quetta.
12. The Registrar, Balochistan High Court, Quetta.
13. The Additional Secretary (Staff) to the Chief Secretary, Balochistan.
14. Master File.


(MANAGING DIRECTOR)

Balochistan Public Procurement Regulatory Authority